

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUBC064957: MAURICIO DE PAZ SANCHEZ vs EDGAR PEREZ

08/13/2026 in Department 43

Motion for Notice of Application and Hearing for Right to Attach Order/Writ of Attachment

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Hearing on Application for Writ of Attachment

Tentative Ruling: The Plaintiff's Application for Right to Attach Order and Issuance of a Writ of Attachment is DENIED on multiple grounds.

There is no evidence that Defendant was provided notice of this application. Section one of the notice filed by the Plaintiff states that Defendant's address and telephone number are unknown. There is no proof of service indicating that the notice and application were served. A prejudgment writ of attachment issued without notice to a defendant is an extraordinary remedy. An application brought ex parte (i.e., without notice) for a right to attach order must comply with CCP § 485.010, which requires the Plaintiff to submit an affidavit demonstrating that delaying the attachment until a noticed hearing would likely cause great or irreparable harm. To establish "great or irreparable injury," the plaintiff must point to specific facts that support a real risk the defendant is concealing assets, squandering them, or leaving the state. Allegations in the complaint of "fraud" or that the defendant has not refunded money do not justify issuing the order.

Furthermore, C.C.P. § 484.20 requires an explicit description of the property to be attached. The description of the property must be reasonably adequate to permit the defendant to identify the specific property to be attached. A vague, generalized description of “Bank accounts, accounts receivable, and other non-exempt property of defendant” without specifying which accounts, receivables or assets are being targeted prevents the Defendant from asserting statutory exemptions under C.C.P. § 487.020. Furthermore, attachment is statutorily limited to certain types of property tied to the Defendant’s trade or business. Had he been given notice, Defendant would be entitled to claim personal funds in exempt accounts needed for basic living expenses. The court will not approve a broad, generic request to attach a Defendant’s personal assets or in this case, all of Defendant’s accounts, etc..